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The Gazette of the Democratic Socialist Republic of Sri Lanka
EXTRAORDINARY

අංක 2026/25 - 2017 ජූලි මස 05 වැනි බදාදා - 2017.07.05
No. 2026/25 - WEDNESDAY, JULY 05, 2017

(Published by Authority)

PART I : SECTION (I) — GENERAL
Government Notifications

L.D.B. 05/2016

CONDOMINIUM MANAGEMENT AUTHORITY LAW, No. 10 OF 1973

REGULATIONS made by the Minister of Housing and Constructions under Section 24 read with Section 6(e) of the Condominium Management Authority Law, No. 10 of 1973.

Minister of Housing and Constructions.

Colombo,
27th June 2017.

Regulations

1. These Regulations may be cited as the Condominium (Charging of Fees) Regulations No. 01 of 2017.

2. The fees charged under section 6(e) of the Condominium Management Authority Law, No. 10 of 1973 by the Condominium Management Authority for the services rendered by the said Authority shall be as set out in the Schedule hereto.

SCHEDULE

1.	Fees in respect of issuing certificates	
	1. Application fee	Prescribed fee
	Application fee to be paid for obtaining the certificate of the General Manager for common elements and common amenities in a Condominium Property, Semi-Condominium Property or a Provisional Condominium Property.	Rs. 500.00
		In addition to the fee other taxes imposed by the government are added.
	2. Processing fee for preliminary clearance letter	25% of the processing fee to be paid at the time of obtaining the preliminary clearance letter.



SCHEDULE (Contd.)

3. Processing fees of applications submitted in respect of a Condominium Property.	Residential prescribed fee	Commercial prescribed fee
	Per 1 s ²	
0-500m ²	Rs. 30.00	Rs. 50.00
From 501m ² -1, 000 m ²	Rs. 75.00	Rs. 150.00
From 1,001 m ² -3,000 m ²	Rs. 250.00	Rs. 450.00
From 3,001m ² - 5,000m ²	Rs. 300.00	Rs. 500.00
More than 5,001 m ²	Rs. 600.00	Rs. 850.00
4. After obtaining the Provisional certificate/semi certificate and after completion of the construction the final certificate should be obtained.	Prescribed fee	
From 500m ² -1, 000 m ²	Rs. 2,000.00	
From 1,001 m ² -3,000 m ²	Rs. 110, 000.00	
From 3,001m ² - 5,000m ²	Rs. 150,000.00	
From 5,001m ² - 10,000m ²	Rs. 200,000.00	
From10,001m ² - 20,000m ²	Rs. 250,000.00	
From 20,001m ² - 30,000m ²	Rs. 300,000.00	
From 30,001m ² - 40,000m ²	Rs. 350,000.00	
From 40,001m ² - 50,000m ²	Rs. 400,000.00	
More than 50,001 m ²	Rs. 450,000.00	
	In addition to the fee other taxes imposed by the government are added.	
5. Field inspection fee for Condominium Properties constructed outside the boundary of the Western Province.	Transport charges –	
	(i) for five Condominium Units or less of a Condominium Parcel – Rs. 12.00 per Kilometer	
	(ii) for more than five CondominiumUnits of a Condominium Parcel – Rs. 20.00 per Kilometer	
	In addition to the transport charges other taxes imposed by the government are added.	

SCHEDULE (Contd.)

6. Inspection fee for Condominium properties constructed in Colombo, Gampaha and Kalutara Districts.	Transport charge of Rs. 20.00 per Kilometer together with taxes imposed by the Government for inspections conducted in Gampaha and Kalutara Districts of the Western Province outside Colombo city limits.
7. Renewal of a Semi or Provisional Condominium Plan (annually)	Prescribed fee
	Per 1s ²
	Up to 1,000m ² Rs. 2,000.00
	From 1,001 m ² -3,000 m ² Rs. 7,500.00
	From 3,001m ² - 5,000m ² Rs. 15, 000.00
	From 5,001m ² - 10,000m ² Rs. 20, 000.00
	More than 10,001m ² Rs. 25, 000.00
	In addition to the fee, other taxes imposed by the government are added.
8. Levying the nominal fee when the area in square meters of a registered Condominium remains unchanged though amendments have been made.	Prescribed fee
	No. of condominium units fee
	Less than 05 units Rs. 1,000.00
	Units from 06-10 Rs. 2,500.00
	Units from 11-20 Rs. 5,000.00
	Units from 21-30 Rs. 15,000.00
	Units from 31-40 Rs. 25,000.00
	Units from 41-50 Rs. 30,000.00
	More than 50 units Rs. 50,000.00
	In addition to the fee other taxes imposed by the government are added.
9. Processing fee for Provisional or Semi Condominium Certificate	50% of the fee paid at the time of obtaining the final certificate shall be paid as an advance. In addition to the fee other taxes imposed by the government are added.
10. To obtain a true copy of the certificates issued	Rs. 1, 500.00 In addition to the fee other taxes imposed by the government are added.

2. When the parties make an application for the consent of the Authority to terminate the condominium status of Condominium Property/demolish a Condominium Property, (subject to the provisions of the Law) the fees payable are as follows (subject to the Government taxes):-

Fee levying scheme when a request is made by the parties seeking the approval of the Authority to terminate the existence of/dismantle a Condominium Property.		
The Fee charges for a request made seeking the approval of the Condominium Management Authority by the Condominium parties for a building registered as a Condominium Property.	Prescribed fee	
	No. of condominium units	Fee
	Units from 2-5	Rs.2,000.00
	Units from 6-10	Rs.5,000.00
	Units from 11-25	Rs.7,500.00
	More than units 26	Rs.15,000.00
	In addition to the fee other taxes imposed by the government are added.	
	Prescribed fee	
Field inspection fee	When it is required to examine the properties located outside the Western Province, a transport fee of Rs. 30/= per kilometer is levied. (not applicable when transport facilities are provided) when the Condominium Property is located in the Western Province outside the city limits of Colombo, a fee of Rs. 7500/= is levied as field inspection fee. In addition to the fee other taxes imposed by the government are added.	

07-579/1

L.D.B 05/2016

APARTMENT OWNERSHIP LAW, No. 11 OF 1973

REGULATIONS made by the Minister of Housing and Constructions under Section 24 of the Apartment Ownership Law, No. 11 of 1973.

Minister of Housing and Constructions.

Colombo.
27th June 2017.

Regulations

1. These Regulations may be cited as the Condominium Property (Management) Regulations, No. 01 of 2017.

PART I

Issuance of Certificates

2. (1) The owner of any Condominium Property who intends to apply for a certificate of common amenities and common elements issued by the General Manager of the Condominium Management Authority (hereinafter referred to as the "Authority") under section 3A(2)(i) of the Act shall submit to the Authority an application in the form set out in the Schedule I hereto.

(2) The owner of any Provisional Condominium Property who intends to apply for a certificate of common amenities and common elements issued by the Authority under section 3B(2)(f) of the Act shall submit to the Authority an application in the form set out in the Schedule 2 hereto.

(3) The owner of any Semi-Condominium Property who intends to apply for a certificate of common amenities and common elements issued by the Authority under section 3C(2)(f) of the Act, shall submit to the Authority an application in the form set out in the Schedule 3 hereto.

3. (1) Any application made under regulation 2 shall be signed by the owner of the property and shall accompany –

- (a) the relevant Condominium Plan, Provincial Condominium Plan or Semi Condominium Plan prepared and signed by a registered licensed surveyor ;
- (b) a report on services and plans relating to common amenities which report shall be signed by the persons who are duly qualified in relevant fields ;
- (c) the relevant building plan approved by the relevant local authority or the planning authority ;
- (d) in the case of an application relating to a Provisional Condominium Parcel or a Semi-Condominium Parcel, a valid building permit to construct the building ;
- (e) in the case of a Condominium Plan or a Semi Condominium Plan, the certificate of conformity obtained for the completed building ;
- (f) structural plan of the building and the certificate which shall be certified by a civil service structural engineer ;
- (g) insurance certificate of the condominium property ;
- (h) a title report relating to the subject matter of the application ; and
- (i) such other documents as may be required by the Authority.

(2) All documents specified in paragraph (1) above shall be in triplicate.

(3) The persons who are duly qualified in the relevant fields as is referred to in subparagraph (b) of paragraph (1) are specified in the Schedule 4 hereto.

4. For the purpose of considering any application submitted under regulation 2, the owner is required to furnish, in addition to the documents referred to in the preceding regulation, any certified information showing the arrangements made for the future maintenance of the property together with any plans as the Authority may consider necessary to satisfy itself of the suitability of the proposed development work.

5. The Condominium Plan, Provisional Condominium Plan or the Semi Condominium Plan submitted along with the application under regulation 2 shall:-

- (a) be prepared and signed by a registered licensed or authorized surveyor or a person duly authorized for the purpose by the surveyor-General;

(b) be in compliance with the requirements of the provisions of the Act and these regulations;

(c) be in the following order:-

- (i) cover page;
- (ii) index;
- (iii) survey plan depicting the land and the building with legend;
- (iv) type of building and use of building and title particulars;
- (v) plan for the storeys with necessary details showing condominium parcels, accessory parcels and common elements with boundaries;
- (vi) schedule which contains boundaries of such condominium parcel, the assessment number, boundary details, area and percentage of the share value;
- (vii) list of common elements;
- (viii) dimension plan of each parcel;
- (ix) vertical section; and
- (x) any other particulars as the Authority may deem necessary.

6. When preparing the Condominium Plan, Provisional Condominium Plan or Semi Condominium Plan, the following requirements shall be complied with:-

- (a) the Plan shall be in triplicate and in the first page of such Plan the words “original”, “duplicate” and the “triplicate” as the case may be, shall be written legibly;
- (b) in every page of the plan, on top right side corner, the words “Condominium Plan”, “Provisional Condominium Plan”, “Semi-Condominium Plan”, “a Plan of re-division”, or “amalgamated Plan”, as the case may be, shall be written together with the number of the Plan and shall also specify the purpose of the Plan;
- (c) every page of the Plan shall be numbered on the top right hand corner in the following manner; viz. when there are 10 pages, every page beginning with the first page shall be numbered as 1 of 10, 2 of 10, 3 of 10 and so on;
- (d) the Plan shall be prepared using “A” standard paper and if there are more than one volume and the first volume has 10 pages, the second volume shall be started with the continuous number 11 of 20;
- (e) the Plan shall be printed or hand written in letters of legible size and shall have a cover page and an index and shall adhere to the order as set out in regulation 5 (1) in arranging the leaves. The thickness of the page shall be gsm 120 or more (the weight of a leaf shall be over 120 grams per one square meter). The Plan shall be prepared in the form of a strongly bound book. In the cover page, the purpose and the number of the Plan, the address and other relevant particulars of the surveyor shall be printed or hand written and shall not carry any advertisements or pictures;
- (f) the surveyor who prepared the Plan shall sign and place his seal on every page of the Plan.

7. Certain details in a Condominium Plan, Provisional Condominium Plan or Semi Condominium Plan shall be indicated in the following manner:-

- (i) in the instances where parts of a Condominium Parcel comprised of two or more floors with internal access, the parts of the top most Condominium Parcel in the Plan in respect of each storey, shall be indicated as “1st floor part”, “2nd floor part” etc. with boundaries of each such part indicating its usage in the schedule prepared under regulation 5(c)(vi). The total area of the Condominium Parcel shall be computed with details of each Condominium Parcel and the percentage of the value of the relevant part shall be indicated;

- (ii) where a Condominium Property is to be erected and the relevant Condominium Plan shall indicate, in addition to the delineation which indicates the surface boundary of the building, all the common elements such as common drains, soakage pits and septic tanks found in the boundaries of the lands situated outside the building. There shall be indications to distinguish a proposed building from an existing building;
- (iii) there shall be drawn a vertical section, for every building, the scales of which shall be 1:100 or 1:200 and shall show the height between two storeys and also the thickness of each floor;
- (iv) when calculating the gross area of a Condominium Parcel, the center line of the external walls shall be considered as the boundary and the concrete beams, service duct and common spaces over one square meter shall be excluded;
- (v) the share value percentage and share value shall be computed by adding the areas of the accessory parcel to the area of the main parcel. The boundaries and area of the accessory parcels and the Condominium Parcel shall be separately marked in the schedule;
- (vi) the boundaries of the land shown in the approved building plan of a completed or proposed Condominium building shall be the same as the boundaries of the land shown in the Condominium Plan;
- (vii) at the time a Condominium Plan is submitted in respect of a Provisional Condominium building or Semi Condominium building, the validity of the building permit shall not have lapsed and the reference number of the approved building permit and the date shall be indicated in the Condominium Plan;
- (viii) in the case of a Condominium building used for mixed purposes such as residential purpose and any other purpose, separate parking areas with distinctive numbers should be demarcated separately without obstructing the usage of the building;
- (ix) the buildings shown in a Semi-Condominium Plan shall be marked with permanent lines and proposed parcels shall be marked with broken lines or using any other method which would enable easy identification of the building;
- (x) the individual numbers allocated according to the location of each parcel and relating to the storey, the assessment number, if any, the boundary details of six sides shown relating to the centre line of the storey or concrete floor, the area of the parcel, the percentage of the share value of the area, the closest adjoining common access, the details of the common elements shall be included in the Plan and the boundaries of each parcel shall be marked so that it could be distinguishable and included in the Plan along with the purpose of each room;
- (xi) when preparing a Condominium Plan, the laws relating to the disable, shall also be taken into consideration;
- (xii) in amending a registered Condominium Plan, the share value mentioned in the prior registered Plan and the share value mentioned in the amended Plan shall be shown in separate columns in red and black respectively so that the different values could be identified easily;
- (xiii) the boundaries and particulars of accessory parcel such as enclosed balconies without facility of access to other parcel and limited to the exclusive use of the main parcel and situated adjacent and outside outer boundaries of the Condominium Parcel describe in the Plan shall be indicated in the schedule separately as accessory parcel and added to the square area of the main parcel and the percentage of the share value shall be calculated accordingly;
- (xiv) the responsibility of registering the Condominium Property lies on the owner of the Condominium Property.

PART II

Space Allocation

8. The following matters shall be taken into consideration in planning the space allocation in a Condominium Property:-

- (a) where there are five or more parcels in a Condominium Property, a space shall be allocated in the building for the Management Corporation. There shall be a room to be used as an office as well and to keep the equipment;
- (b) when an agreement is signed to sell a Condominium Property, Semi Condominium Property or Provisional Condominium property for any relevant purposes, the area of that parcel shall be equal to the area shown in the Condominium Plan prepared by a registered Licensed Surveyor;
- (c) where the need arises to change the approved purpose of any Condominium Parcel or part thereof, the prior written approval shall be obtained for the same from the planning authority together with the concurrence of the Authority;
- (d) the provision of the main water supply system/water collection tanks shall be in compliance with the requirements of the Water Supply and Drainage Board;
- (e) the electricity supply and water supply meters shall be fixed securely in a place where the common elements are provided;
- (f) the space consumed by the service pipelines of each parcel of the Condominium Property in cases where supplied through other parcels, that space shall be indicated as a common element in the Condominium Plan;
- (g) the heat-proofing shall be arranged in such manner so as to control the heat caused by the common roof;
- (h) a generator with adequate capacity shall be installed for the lift and the common lamps which shall be fired with an automatic switch;
- (i) any passage which provides access to residential parcels shall have a minimum width of 1.5 meters;
- (j) the height of the balcony walls shall be in compliance with the international standards;
- (k) in case of a building having an area over 5000 square feet or five storeys, a soil certificate shall be obtained from a recognized government approved institution;
- (l) in the event any contractor fails to fulfill the obligations during the guarantee period in terms of the guarantee certificate in respect of a Condominium building, the owner of the property is bound to fulfill those obligations.

PART III

Preliminary Planning Clearance

9. In order to obtain guidelines required for the development of Condominium Properties, a preliminary clearance letter shall be obtained by submitting an application as per the format given in Schedule 5 obtained from the Authority together with the relevant information.

10. The period of validity of the preliminary clearance letter is three years.

PART IV

Administration and Management of Condominium Property and Parcels

11. It shall be the duty of any Management Corporation to assure that the following are complied with, in the management of any Condominium Property or Condominium Parcel:-

- (a) where the parking areas are defined as common elements in the registered Condominium Plan, every occupant has a common right to park his vehicle on the first come first serve basis in such parking area;
- (b) no owner of a residential Condominium Parcel shall give such parcel on a short term lease or rent to a third party, without on a duly prepared lease agreement;
- (c) where, in the case of a corrosion or leak inside a Condominium Parcel, and the nature of such corrosion or leak has been identified by a technical report, the responsible party shall repair that corrosion or leak and if that party fails to repair it, the Management Corporation may repair it and recover the cost of such repairs from that party;
- (d) no person shall use a Condominium Parcel in such manner so as to obstruct the use of common amenities by other occupants of such Condominium Parcel or cause inconvenience to the other occupants thereof;
- (e) it is imperative for the Management Corporation to detail a suitable person to operate lifts in a Condominium Property. Otherwise an officer should be detailed to the control room who may observe inside of the lift by CCTV cameras;
- (f) the Management Corporation shall continue to maintain the fire extinguishers and see that they would not go out of function;
- (g) where any Management Corporation has charged the management fees in equal instalments, the Management Corporation from the date of these regulations shall charge the management fees in proportionate to the share value of the Condominium Parcels;
- (h) no person shall, while an inquiry is pending before the Authority on a complaint relating to a non-registration of a Condominium Property sell, mortgage or give on lease any of the other Condominium Parcels without the permission of the Authority;
- (j) where the title deeds of Condominium Parcels have not been issued to the purchasers thereof after the Condominium Plans of such properties have been registered, an owner has no power to make any rules at a meeting affecting the rights of the prospective purchasers.

PART V

Miscellaneous

12. No person shall occupy any Condominium Property unless he has the certificate of conformity issued by the relevant local authority in respect of that property.

13. In these Regulations “Act” shall mean the Apartment Ownership Law, No. 11 of 1973.

SCHEDULE I

Regulations 2(1)

For Official use only	
No.	Date of receipt.....
Date of payment.....	
Processing fee.....	
Inspected on.....	No. of cash bill.....
..... Name	 Signature

CONDOMINIUM MANAGEMENT AUTHORITY

Application for a certificate in respect of the common amenities and the common elements of a Condominium Property

1. Name/s of the owner/owners :
2. No. of the National Identity Card / Registration number of the company :
3. Address :
4. E-mail address :
5. Telephone No.:
6. Name of the Condominium Property :
7. Address of the Condominium Property :
8. Number of Condominium Parcels. I. Residential II. Commercial
9. Area in square meters of the Condominium Property.
I. Name of the Surveyor : II. Condominium Plan No. :
10. In the case of a Company, details of the company:
- 11 Title deed of the land :
- 12 If any loan has been obtained for the Project, the details about the mortgages and other obligations:
.....
13. Details about the sales agreements and the owners of the Condominium Parcels:.....
14. The period for which the Condominium Plan is intended to be registered :

15. Annexes:

(I) Building Plan, with amendments as last Approved by the Municipal Council/Urban Council/ Pradeshiya Sabha (original, and two copies which should have been certified by a Chartered Architect and a Chartered Structural Engineer)

Reference No.	Date
---------------	------

(II) Condominium Plan (original/duplicate/triplicate)

Reference No.	Date
---------------	------

(III) The certificate of conformity issued by the relevant Local Authority (original and two copies)

Reference No.	Date
---------------	------

(IV) The title deed of the land (original and two copies)

Reference No.	Date
---------------	------

(V) Management proposals relating to maintenance (In case of a Company, should have been signed by two Directors)

Reference No.	Date
---------------	------

(VI) Following information relating to the construction:

- | | |
|---|---|
| (a) Plan for water supply; | (g) Plan for the provision of telephone facilities; |
| (b) Plan for the disposal of waste water; | (h) Plan for the provision of the electric lifts; |
| (c) Plan for the sewerage; | (i) Plan for the provision of fire protection; |
| (d) Plan for the draining out rain water; | (j) Structural plans; |
| (e) Plan for the management of garbage; | (k) Plans for other services. |
| (f) Plan for the electricity supply; | |

All these plans should have been signed by a qualified person.

I/We confirm that the foregoing information is correct.

.....
Signature of the owner/s/
Applicant

.....
Signature of the Chartered Engineer/
Chartered Architect

.....
Signature of the registered
Surveyor

.....
Date

.....
Date

.....
Date

For office Use

Other Remarks

SCHEDULE 2

Regulations 2(2)

For Official use only	
No.	Date of receipt.....
Date of payment.....	
Processing fee.....	
Inspected on.....No. of cash bill.....	
..... Name	 Signature

CONDOMINIUM MANAGEMENT AUTHORITY

Application for a certificate in respect of the common amenities and the common elements of a Provisional Condominium Property

1. Name/s of the owner/owners :
2. No. of the National Identity Card / Registration number of the company:
3. Address:
4. E-mail address:
5. Telephone No.:
6. Name of the Provisional Condominium Property:
7. Address of the Provisional Condominium Property:
8. No. of Condominium Parcels.
9. No. of square meters in the Provisional Condominium Property.....
10. Annexes:

- (i) The building Plan, last approved with amendments issued by the Municipal Council/Urban Council/ Pradeshiya Sabha

Reference No.	Date
------------------	------

- (ii) Provisional Condominium Plan (original/duplicate/triplicate).

Reference No.	Date
------------------	------

- (iii) Proposed Development Programme relating to the construction, prepared and signed by a qualified person in terms of the Apartment Ownership Law No. 11 of 1973.

Reference No.	Date
------------------	------

- (iv) The title deed of the land (original and two copies)

Reference No.	Date
------------------	------

- (v) Management proposals in respect of maintenance (In case of a company, should have been signed by two Directors)

Reference No.	Date
------------------	------

(vi). Following information relating to the construction:

- | | |
|---|---|
| (a) water supply; | (g) Plan for the provision of telephone facilities; |
| (b) Plan for the disposal of waste water; | (h) Plan for the provision of the electric lifts; |
| (c) sewerage; | (i) Plan for the provision of fire protection; |
| (d) draining out rain water; | (j) Plans for other services. |
| (e) Plan for the management of garbage; | |
| (f) supply of electricity; | |

All these plans should have been signed by a qualified person.

I/We confirm that the foregoing information is correct.

.....
 Signature of the owner/s/
 Applicant

.....
 Signature of the Chartered Engineer/
 Chartered Architect

.....
 Signature of the registered
 Surveyor

.....
 Date

.....
 Date

.....
 Date

For office Use

Other Remarks

SCHEDULE 3

Regulations 2(3)

For Official use only	
No.	Date of receipt.....
Date of payment.....	
Processing fee.....	
Inspected on.....	No. of cash bill.....
..... Name	 Signature

CONDOMINIUM MANAGEMENT AUTHORITY

Application for a certificate in respect of the common amenities and the common elements of a Semi-Condominium Property

1. Name/s of the owner/owners :
2. No. of the National Identity Card / Registration number of the company :
3. Address :
4. E-mail address :
5. Telephone No.:
6. Name of the Semi-Condominium Property:
7. Address of the Semi-Condominium Property:
8. Number of Semi-Condominium Parcels. I. Residential II. Commercial
9. Area in square meters of the Semi-Condominium Property.
I. Name of the Surveyor : II. Semi-Condominium Plan No. :
10. Details of the certified company:
11. Title deed of the land :
12. If any loan has been obtained for the Project, the details about the mortgages and other obligations:
.....
13. Details about the sales agreements and the owners of the Condominium Parcels:.....
14. Period for which the Semi-Condominium Plan is intended to be registered :
15. Annexes:

(i) The building Plan, with amendments as last approved by the Municipal Council/Urban Council/ Pradeshiya Sabha (original, and two copies certified by a Chartered Architect and a Chartered Structural Engineer)

Reference No.	Date
---------------	------

(ii) Semi-Condominium Plan (original/duplicate/triplicate)

Reference No.	Date
---------------	------

(iii) The Certificate of Conformity for the completed parcels.

Reference No.	Date
---------------	------

(iv) Proposed Development Programme relating to the construction prepared and signed by a qualified person in terms of the Apartment Ownership Law No. 11 of 1973.

Reference No.	Date
---------------	------

(v) The title deed of the land (original and two copies)

Reference No.	Date
------------------	------

(vi) Management proposals relating to maintenance
(In case of a company, should have been signed
by two Directors)

Reference No.	Date
------------------	------

(vii) Following information relating to the construction:

- | | |
|---|---|
| (a) Plan for water supply; | (g) Plan for the provision of telephone facilities; |
| (b) Plan for the disposal of waste water; | (h) Plan for the provision of the electric lifts; |
| (c) Plan for the sewerage; | (i) Plan for the provision of fire protection; |
| (d) Plan for the draining out rain water; | (j) Plans for other services. |
| (e) Plan for the management of garbage; | |
| (f) supply of electricity; | |

All these plans should have been signed by a qualified person.

I/We confirm that the foregoing information is correct.

.....
Signature of the owner/s/
Applicant

.....
Signature of the Chartered Engineer/
Chartered Architect

.....
Signature of the registered
Surveyor

.....
Date

.....
Date

.....
Date

For office Use

Other Remarks

SCHEDULE 4

Regulation 3(3)

Relevant qualified persons referred to in paragraph (3) of regulation 3 shall be as follows:-

- (i) Condominium Plan, Semi-Condominium Plan or Provisional Condominium Plan-Registered Licensed Surveyor or the person authorized by the Surveyor General.
- (ii) structural certificate and the plan - A Chartered Structural Engineer registered as a Structural Engineer with the Sri Lanka Institute of Engineering.
- (iii) Plan regarding the supply of water to the building and the relevant certificate-A Chartered Civil Engineer attached to the building services in the Sri Lanka Institute of Engineering.
- (iv) Plan for the disposal of waste water in the building and the relevant certificate- A Chartered Civil Engineer attached to the building services in the Sri Lanka Institute of Engineering.
- (v) Sewage system in the building and the relevant certificate - A Chartered Civil Engineer attached to the building services in the Sri Lanka Institute of Engineering.
- (vi) Plan for the draining out rain water and the relevant certificate – A Chartered Civil Engineer attached to the building services in the Sri Lanka Institute of Engineering.
- (vii) Garbage disposal – Proposal approved by the relevant Local Authority.
- (viii) Supply of the electricity – Registered Chartered Electrical Engineer attached to the building services in the Sri Lanka Institute of Engineering.
- (ix) Supply of telephone facilities – A Registered Chartered Electrical Engineer attached to the building services in the Sri Lanka Institute of Engineering.
- (x) Lightning Protection – A Registered Chartered Electrical Engineer attached to the building services in the Sri Lanka Institute of Engineering.
- (xi) Electrical Lift – A Registered Chartered Electrical Engineer attached to the building services in the Sri Lanka Institute of Engineering or a Mechanical Engineer.
- (xii) Fire Extinguishing Certificate issued by the Fire Department of the Municipal Council.
- (xiii) Supply of gas – A Registered Mechanical Engineer registered under the building services in the Sri Lanka Institute of Engineering.
- (xiv) Soil Certificate – Certificate obtained from a recognized government approved institution.
- (xv) Estimates on expenditure – shall be certified by a Chartered Civil Engineer or a Chartered Quantity Surveyor.

SCHEDULE 5

Regulation 9

Application for the Preliminary Planning Clearance for the Proposed Condominium Property Development

For official use only

No.

Processing fee.....

No. of the receipt and date.....

The General Manager,

Condominium Management Authority.

From :
.....
.....
.....
.....
.....

I/We hereby apply for the Preliminary Planning Clearance for condominium development at bearing assessment
No. street ward town

I/we submit the following information in duplicate:

1. The location of the property referred to, with an extent not less than 1:6000 and the surveyor plan relating to adjoining land,
2. the proposed building plan inclusive of information and data shown in the Annex.
3. the title deed of the land.

I am/ We are aware that the Preliminary Planning Clearance is only a guidance for the Condominium property development.

The letter of owner of the property showing his ownership is annexed.

I/ We confirm that the foregoing information is correct.

.....
Date

.....
Signature of the owner/ applicant

ANNEXURES

1. (1) Information of the owner:

Name :
Address :
Telephone No. :

(2) Location of the land:

(a) Location :
Assessment No. :
Local Authority :
Street :
Number of the Surveyor's plan :
(Plan should be annexed)

(b) Information of the land:

(i) Nature of the land :
Area in sq. meters :
Current use of land :

(ii) If there is a building, details:

Number of storeys :
Maximum height in sq. meters :
Floor area in sq. meters :
(approved building plan, if any, should be annexed)

(3) Particulars about the proposed project:

(a) Nature of the project :
(b) Sketch of the plan :
(plan should be annexed)

(4) Available infra-structural facilities:

(a) facilities for access:
(b) water supply :
(c) sewerage :
(d) electricity supply :
(e) treatment supply (sewerage/waste water) :
(f) disposal of garbage :

(5) (a) floor area in sq. meters :
(b) number of storeys and the height of the building:
(c) floor coverage : $\frac{\text{Area of the ground} \times 100}{\text{Area of the land}}$:-
(d) an account of the proposed building with the proposed number of parcels:
(e) details about the floor area (s. meters)

residential :
non-residential :
offices :
restaurants :
other :
full extent :

(f) Proposed parking spaces

Motor cars :
Others :

(6) Available common amenities:

gymnasium :
swimming pools :
community centers :
office for the management corporation :
meeting halls :
maintenance offices :
drivers' rest rooms :
security huts :
common toilets :
(drivers/security staff/disable) :
roof top terrace :

I/We confirm that the above information is correct.

.....
Date

.....
Signature/s of the owner/s

2. The Authority may take action as the case may be against the owner and the Management Corporation under the Act in relation to the following matters referred to in Regulation 3.
 - (a) furnishing false information;
 - (b) designs, service plans and management proposals not in conformity with specifications;
 - (c) violating provisions imposed;
 - (d) violating the conditions of the certificates; and
 - (e) non-payment or default of the prescribed service fees.
3. All elements within the Condominium Property other than Condominium Parcels and Accessory Parcels shall be deemed common elements and all boundaries of Condominium Parcels and Accessory Parcels shall be the centre line of the appurtenant unit or the common element and such terms shall be applicable in respect of boundary walls of a building bounded by the adjoining property.
4. A report obtained from a qualified person regarding the Management proposals of the Condominium Property shall be annexed to the application made to obtain a certificate for the common amenities and the common elements from the Authority.
5. When service counters are designed in constructing a condominium building it should be located in such a way so as to maintain easily.
6. The Management Corporation established under the Law shall, without fail, be registered with the Authority.
7. where a dispute arises between an owner and an occupant or between two owners in regard to the use or acquisition of a Condominium Parcel or the use of the common amenities or common elements of that parcel, a compliant shall be made regarding that dispute to the Management Corporation. The Management Corporation shall endeavor to settle that dispute and if any party is dissatisfied with the decision of the Management Corporation, that party may make an appeal against that decision to the Authority.

8. Warranty certificates:

Water proofing system – water proofing system with a warranty period of 10 years.

Fire insurance – fire insurance obtained for one year.

Lightening protection – lightening protection system with a warranty certificate for a period of 5 years.

Generator – with a warranty certificate for one year.

Water pumps – with a warranty certificate for one year.

Electrical Lifts- with a warranty certificate for one year.

07-579/2